

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #15	CCRB Case #: 202405659	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Friday, 05/24/2024 7:15 PM	Location of Incident: Highland Boulevard between Vermont Place and Jamaica Avenue	18 Mo. SOL 11/24/2025	Precinct: 75
Date/Time CV Reported Fri, 05/24/2024 9:22 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 06/07/2024 11:04 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO David Teran	26424	955569	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Zachary Cachia	12044	968308	075 PCT
2. PO Ahmed Dar	16236	966529	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO David Teran	Force: Police Officer David Teran struck § 87(2)(b) with a vehicle.	A . Substantiated
B . PO David Teran	Force: Police Officer David Teran struck § 87(2)(b) with a vehicle.	B . Substantiated

Case Summary

On May 24, 2024, Sergeant Rafal Korycki of the 75th Precinct reported this complaint to IAB on behalf of § 87(2)(b) and § 87(2)(b). On June 7, 2024, the complaint was forwarded to the CCRB via IAB log #§ 87(2)(b).

At approximately 7:15 p.m. on May 24, 2024, § 87(2)(b) and § 87(2)(b) were riding a motorcycle along the sidewalk next to Highland Boulevard, between Jamaica Avenue and Vermont Place, in Brooklyn. Police Officer David Teran, Police Officer Zachary Cachia and PO Ahmed Dar of the 75th Precinct were patrolling on Highland Boulevard in the opposite direction in a marked SUV. PO Teran was driving the vehicle. PO Teran drove his vehicle onto the sidewalk, striking the motorcycle (**Allegations A and B: Force – Vehicle, substantiated**). Both § 87(2)(b) and § 87(2)(b) were thrown from the motorcycle and suffered fractures. They were both hospitalized for their injuries. They were also placed under arrest (Board Review #01).

The investigation obtained BWC footage for this incident (Board Review #02). No other relevant footage was found.

Findings and Recommendations

Allegation (A) Force: Police Officer David Teran struck § 87(2)(b) with a vehicle.

Allegation (B) Force: Police Officer David Teran struck § 87(2)(b) with a vehicle.

On July 16, 2024, § 87(2)(b) was interviewed by the CCRB (Board Review #03). On August 7, 2024, § 87(2)(b) was interviewed by the CCRB (Board Review #04). On January 14, 2025, PO Teran was interviewed by the CCRB (Board Review #05). On January 28, 2025, PO Dar was interviewed by the CCRB (Board Review #06). On January 29, 2025, PO Cachia was interviewed by the CCRB (Board Review #07).

It is undisputed that § 87(2)(b) and § 87(2)(b) were riding a motorcycle on the sidewalk running along Highland Boulevard. Neither of them was wearing a helmet. There was a chain-link fence running along the sidewalk. There was no gap between the edge of the sidewalk and the base of the fence. PO Teran, PO Cachia and PO Dar were riding along Highland Boulevard in a marked SUV, heading in the opposite direction. PO Teran was driving. PO Teran drove the vehicle up onto the sidewalk in front of the motorcycle. The SUV and the motorcycle collided. Both § 87(2)(b) and § 87(2)(b) were thrown off the motorcycle and over the fence. They both suffered fractures as a result. The officers exited their SUV and climbed over the fence to reach § 87(2)(b) and § 87(2)(b). The officers called both EMS and the FDNY to the location. The FDNY had to cut through the fence using a power saw to allow the EMTs access to § 87(2)(b) and § 87(2)(b). EMS transported both § 87(2)(b) and § 87(2)(b) to the hospital for treatment. They were both eventually arrested. After the arrests, it was discovered that the motorcycle that § 87(2)(b) and § 87(2)(b) had been riding on was reported stolen a few days prior to the incident. Neither PO Teran nor his partners, however, were aware of this information until after the collision.

§ 87(2)(b) stated (Board Review #03) that the motorcycle belonged to § 87(2)(b) and that § 87(2)(b) allowed him to drive it as a favor. § 87(2)(b) acknowledged that he did not have a driver's license. He denied that there were any other pedestrians walking along the sidewalk as he drove up Highland Boulevard. He estimated that they were travelling approximately 30 to 40 miles per hour. § 87(2)(b) noticed a marked SUV driving along the street towards him at

approximately 20 miles per hour. It did not have its lights or sirens activated. When the SUV was approximately one and a half car lengths ahead of § 87(2)(b) it suddenly turned to its right and veered onto the sidewalk in front of him. § 87(2)(b) slammed on the motorcycle's brake. The SUV's front bumper struck § 87(2)(b) right leg. § 87(2)(b) could not tell if the bumper struck § 87(2)(b) or the motorcycle. The impact knocked § 87(2)(b) and § 87(2)(b) over the fence. § 87(2)(b) suffered fractures in both legs, including a compound fracture to his right leg, as well as abrasions on his head. He was later treated at § 87(2)(b) Hospital.

§ 87(2)(b) stated (Board Review #04) that the motorcycle belonged to § 87(2)(b) though he did not know if it was legally registered. He also stated that the sidewalk was empty when he and § 87(2)(b) were riding along it. § 87(2)(b) estimated that the motorcycle was traveling at 5 to 10 miles per hour. § 87(2)(b) did not notice the police vehicle until it passed close by. He did not provide a specific estimate of how far away it was. He could not tell how fast the police vehicle was traveling. The police vehicle turned onto the sidewalk and drove into the motorcycle, striking it on the right side and hitting both § 87(2)(b) and § 87(2)(b) on their right legs. § 87(2)(b) lost consciousness for a few moments when he landed. When he woke up, he saw that there were several police officers standing over him. § 87(2)(b) felt pain in his neck after the impact. He was eventually diagnosed with a broken neck.

PO Teran stated (Board Review #05) that he and his partners were patrolling around Highland Park to address numerous community complaints about illegal scooters and motorbikes in the area. As he drove along Highland Boulevard, they went over a speed bump. After clearing the speed bump, PO Teran noticed § 87(2)(b) and § 87(2)(b) riding the motorcycle along the sidewalk. PO Teran was familiar with both § 87(2)(b) and § 87(2)(b) prior to the incident, having arrested § 87(2)(b) in the past for stealing a license plate and having once transported § 87(2)(b) from the 75th Precinct stationhouse to another command to address an open I-card. He denied, though, that he recognized either of them until after the collision. PO Teran estimated that the motorcycle was about 100 feet in front of him and was traveling at approximately 45 miles per hour. PO Teran estimated that his own vehicle was traveling at around 20 miles per hour. There were several other pedestrians on the sidewalk at the time. PO Teran felt that the motorcycle's speed posed a threat to the pedestrians' safety.

PO Teran decided to drive his vehicle up onto the sidewalk to block its path. He intended to angle his vehicle at approximately 45 degrees relative to the sidewalk. PO Teran hoped that the motorcycle would respond by either stopping or by turning onto the road and driving there. He denied that he intended to ram the motorcycle with his vehicle. PO Teran came up with this plan on his own. He denied that he had been taught the maneuver in any official NYPD training or that the maneuver was part of standard NYPD procedure. He did not consult with his partners while formulating it or inform them of it in advance. He denied that he had attempted to perform this maneuver during any previous incidents.

PO Teran turned his steering wheel to the right to bring his vehicle onto the sidewalk. He estimated that the motorcycle was about 15 feet ahead of him when he made the turn. He was initially unsure of whether he activated his vehicle's emergency lights or sirens before turning. After reviewing his BWC footage, PO Teran stated that the lights were not engaged, but that he appears to have pressed the vehicle's horn as he made the turn. As PO Teran turned, he heard the motorcycle's engine rev up. The motorcycle accelerated forward but did not change its course at that moment. PO Teran estimated that the motorcycle sped up to 55 miles per hour.

PO Teran removed his foot from the accelerator and hovered it over the brakes as he turned. When

the vehicle's front wheels made contact with the curb, he pressed down on the brake. His vehicle, however, did not slow down as quickly as he expected, causing the vehicle to travel further than he wished. PO Teran suspected that this was because the wheels' impact with the curb lowered the effectiveness of the brakes. PO Teran made conflicting statements regarding how far his vehicle went onto the sidewalk before stopping. He initially stated that the front of his vehicle stopped about halfway across the sidewalk, leaving approximately one or two feet between the bumper and the fence next to the sidewalk. He later stated that the bumper did touch the fence, though he denied that it knocked the fence over.

As PO Teran's vehicle came onto the sidewalk, § 87(2)(b) turned his motorcycle and tried to drive around the front of it. PO Teran estimated that his vehicle was traveling at approximately 2 miles per hour at this moment. The motorcycle struck against both the front of the police vehicle and the fence as § 87(2)(b) tried to maneuver around the police vehicle. PO Teran denied that the front of his vehicle rammed into or struck the motorcycle. The collision ejected both § 87(2)(b) and § 87(2)(b) from the motorcycle, throwing them over the fence that ran along the sidewalk.

PO Cachia and PO Dar (Board Review #06-07) also stated that they first observed the motorcycle driving along the sidewalk. PO Cachia estimated that the police vehicle was traveling at around 5 miles per hour and that the motorcycle was traveling at around 40 miles per hour. He estimated that the motorcycle was about 100 yards ahead of the police vehicle when he noticed it. PO Dar estimated that the police vehicle was traveling at approximately 25 miles per hour and that the motorcycle was traveling at approximately 30 miles per hour. He could not recall how far away the motorcycle was. Both officers stated that there were several pedestrians on the sidewalk near the motorcycle. Neither officer recalled if their vehicle's lights or sirens were active when they saw the motorcycle.

PO Cachia and PO Dar both denied that they or PO Teran discussed the motorcycle before PO Teran turned their vehicle onto the sidewalk. PO Teran did not discuss his course of action with them ahead of time. Both PO Cachia and PO Dar stated that their vehicle ran into the motorcycle. PO Cachia characterized it as a head-on collision. PO Dar stated that while he recalled that the front bumper of the police vehicle struck the motorcycle, he did not recall which part of the motorcycle it made contact with. Both officers stated that the police vehicle and the motorcycle were both in motion at the time of the collision. Neither of them recalled if the police vehicle made contact with the fence when it drove up onto the sidewalk.

All three officers stated that they felt that the motorcycle posed a threat to the safety of the other pedestrians on the sidewalk. They also stated that they later learned that the motorcycle § 87(2)(b) and § 87(2)(b) were riding on had been reported stolen prior to the incident. They noted, though, that they did not learn this until after collision took place and both civilians had been removed to the hospital.

PO Dar prepared Medical Treatment of Prisoner Reports for both § 87(2)(b) and § 87(2)(b) (Board Review #08-09). They state that § 87(2)(b) suffered fractures to both of his legs and was transported to § 87(2)(b) Hospital, and that § 87(2)(b) complained of pain in his head and legs and was transported to § 87(2)(b) Center.

The investigation was unable to obtain § 87(2)(b) medical records from § 87(2)(b) Hospital. § 87(2)(b) signed a HIPAA release form but declined to initial the portions of the form that allowed for the release of alcohol/drug treatment, mental health information and HIV-related information. As a result, § 87(2)(b) Hospital did not honor the subpoena because they don't apply

redactions to their medical records.

§ 87(2)(a) – PHL 18(6)

§ 87(2)(b) The police car struck the motorcycle while going at approximately 15 miles per hour. § 87(2)(b) fell off the vehicle and went over a fence. He struck his head but did not lose consciousness. § 87(2)(b) was placed in a collar brace. He felt pain in his neck, right thumb and right foot. § 87(2)(a) – PHL 18(6)

Sergeant Rafal Korycki of the 75th Precinct prepared both a TRI-Incident report and a police accident report to document this incident (Board Review #08, 10). The reports state that PO Teran was driving southbound on Highland Boulevard with PO Cachia and PO Dar when he noticed § 87(2)(b) driving a motorcycle at a high rate of speed on the sidewalk. PO Teran drove his vehicle onto the sidewalk to block the motorcycle's path and prevent it from harming any pedestrians. When PO Teran's vehicle went over the curb, the brakes failed to engage properly. § 87(2)(b) also accelerated the motorcycle and tried to go around the police vehicle. The two vehicles collided, which ejected both § 87(2)(b) and § 87(2)(b) from the motorcycle.

The AVL data for the officer's vehicle recorded its location, speed, and direction of travel at the time of the incident, captured at eleven-second intervals (Board Review #11). It shows that in the minute prior to the collision, the vehicle was driving northeast on Highland Boulevard. At 7:12:17 p.m., it was traveling at 19.01 miles per hour. At 7:12:28 p.m., it was traveling at 19.44 miles per hour. At 7:12:39 p.m., the vehicle stopped. It remained stopped until at least 8:48 p.m., when the AVL data ends.

PO Teran's BWC recording (Board Review #12) shows him driving his marked SUV along Highland Boulevard. The camera on his chest sits below the vehicle's windows, so it does not clearly show the area outside of the vehicle. There is a panel installed over the vehicle's dashboard with several illuminated lights and buttons on it. At 0:43 into the recording, PO Teran passes over a speed bump. At 0:47 into the recording (corresponding to 7:12:31 p.m. according to its internal timestamp), PO Teran suddenly turns the steering wheel to the right. The vehicle turns towards a chain-link fence on the right side of the road. PO Teran places his left hand over the horn on the steering wheel as he turns it, though it is unclear whether he pressed on the horn.

At 0:51 into the recording, PO Teran exits the driver's seat. His vehicle is seen to be stopped on the sidewalk at an approximately 45 degree angle. The front-right corner of the bumper has struck into the fence running along the sidewalk, knocking it over. There are no other pedestrians on the sidewalk to the left of the vehicle. PO Teran then runs around the back of the vehicle to the passenger's side. There are two pedestrians visible further up the sidewalk, approximately 100 feet away from the police vehicle. The police vehicle's front-right bumper is seen pushed into the fence. The front-right wheel is positioned past the edge of the sidewalk, where the fence had originally been planted. The bumper appears to have been torn off the vehicle. A black motorcycle is pressed between the front of the police vehicle and the fallen fence. There are no riders on the motorcycle. § 87(2)(b) can be heard screaming in the background. A second marked SUV drives up behind PO Teran's vehicle. PO Teran states, "Reverse it, reverse it." He runs back around the rear of his vehicle towards the driver's side. At 1:05 into the recording, an officer from the other police vehicle, Police Officer Thomas Rourke of the 75th Precinct, gets into the driver's seat and backs PO Teran's vehicle up. The vehicle's front bumper falls off as it reverses. The black motorcycle is seen to be pressed into the fallen portion of the fence, with the chain links bending around its shape.

At 1:25 into the recording, PO Teran looks through the fence. § 87(2)(b) is seen lying face-down on in a wooded area on the opposite side of the fence approximately twenty feet away from the motorcycle. He shouts that his feet hurt. At 1:40 into the recording, PO Teran climbs over the fence and jumps down into the wooded area. § 87(2)(b) is seen sitting by a tree approximately ten feet past him. PO Teran places § 87(2)(b) in handcuffs. At 2:20 into the recording, PO Teran states, “All right, we got a bus coming. Why you driving like an idiot, man?” § 87(2)(b) asks, “Bro, why you crash into me? You fucking crazy, bro.” He states that his feet are broken. PO Teran stays with § 87(2)(b) for several minutes while waiting for EMS to arrive. He ends his recording with the EMTs approach.

The first of four BWC recordings that PO Cachia made (Board Review #13) depict the collision from his perspective in the vehicle’s front passenger seat. As with PO Teran’s BWC footage, the camera’s position relative to the vehicle’s windows limits its view of the area around the vehicle. At 0:49 into the recording, the vehicle passes over a speed bump. At 0:55 into the recording, PO Teran turns the vehicle onto the sidewalk. One second later, § 87(2)(b) and § 87(2)(b) drive in front of the vehicle. They immediately go flying off the motorcycle. Their bodies spin through the air and land on the opposite side of the fence.

The first of three BWC recordings that PO Dar made (Board Review #14) shows the interactions between § 87(2)(b) and the EMTs. At 32:55 into the recording, one of the EMTs approaches PO Dar and asks him what happened to § 87(2)(b). Before PO Dar replies, § 87(2)(b) interjects and states, “I’m going to tell you the truth, bro. I was driving on the sidewalk, and they see me driving, and they came, crashed into me. That’s what happened.” He then goes on to state, “We was going, like, fucking forty, bro.”

PO Teran was shown the section of his BWC footage at 0:47 into the recording, immediately before he turned towards the sidewalk. He was asked to review the indicator lights on the panel mounted over the dashboard. After doing so, PO Teran stated that the panel showed that his emergency lights were not activated at that time. PO Teran noted that he is seen moving his hand over the horn on the steering wheel at this time. PO Teran stated that he believed that he pressed on the horn as he turned towards the sidewalk.

PO Teran’s footage was then advanced to 1:00 into the recording, where the front-right bumper of the police vehicle is seen to have knocked over the fence and pinned the motorcycle against it. PO Teran denied that he intentionally steered his vehicle into the fence. When asked how the motorcycle came to be wedged into that position, PO Teran again stated that the motorcycle had tried to steer around his vehicle when he stopped on the sidewalk. The footage was then advanced to 1:10 into the recording, after PO Rourke back the police vehicle away from the fence, leaving the motorcycle lying against the fence. The motorcycle is seen to be positioned approximately one or two feet past the edge of the sidewalk. When asked how the motorcycle came to be positioned so far from the sidewalk, PO Teran speculated that it may have deflected in that direction after it ran into the front bumper of his vehicle.

Since the AVL data indicates that PO Teran’s vehicle was traveling at 19 miles per hour at 7:12:28 p.m. and PO Teran’s BWC footage shows that he steered his vehicle onto the sidewalk at 7:12:31 p.m., it can be determined that his vehicle was traveling at approximately 19 miles per hour immediately before the collision.

The balance of testimony, as well as the statement § 87(2)(b) can be heard giving to the EMT on PO Dar’s BWC recording, indicates that the motorcycle was traveling at approximately 40 miles per hour. Absent additional testimony or documentation, the investigation was unable to verify

whether the motorcycle may have accelerated beyond this speed right before the impact as PO Teran alleged.

PO Teran stated that his vehicle was slowing to a stop when § 87(2)(b) tried to steer the motorcycle into a gap between the fence and the vehicle's front bumper. PO Teran stated at one point that his vehicle struck the fence directly but later stated that there was an approximately one- or two-foot gap between the fence and the bumper. Using the BWC footage, the investigation determined instead that the front bumper forcibly struck the right side of the motorcycle and drove it into the fence, as § 87(2)(b) and § 87(2)(b) stated. The BWC footage shows the rest of the fence runs right up against the sidewalk, with its base affixed against the edge. The footage also shows that PO Teran's vehicle drove directly into the fence, knocking it down and pushing it approximately one or two feet past the edge of the sidewalk. After PO Rourke backs the vehicle away from the fence, the motorcycle is seen to be pressed into the side of the fence, with the chain links curving around its body. This indicates that the motorcycle was knocked to the side by an impact on its right side.

NYPD Patrol Guide procedure 221-15 (Board Review #15) states that when an officer observes a vehicle that they intend to stop, they should consider several factors when determining whether it is necessary to initiate a vehicle pursuit, including the nature of the underlying offense and the immediate location. The Department forbids officers from pursuing a vehicle when the risk of the pursuit outweighs the danger to the community if the suspect is not immediately apprehended. Ramming a vehicle or placing a moving police vehicle in a position to be struck by another vehicle are generally prohibited when attempting to stop a vehicle.

§ 87(2)(g)
It is undisputed that § 87(2)(b) drove the motorcycle on a pedestrian sidewalk at a high rate of speed. § 87(2)(g)

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PO Cachia's BWC footage shows that only about one second passed between when PO Teran turned the vehicle towards the sidewalk and when the police vehicle struck the motorcycle. § 87(2)(g)
§ 87(2)(g)
PO Teran was aware that neither civilian was wearing a helmet nor other safety equipment. § 87(2)(g)

§ 87(2)(g)

BWC footage clearly shows that the front of his vehicle went several feet through the fence, knocking it both down and back from the sidewalk. The impact caused serious damage to his own vehicle's front bumper. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) or § 87(2)(b) has been a party (Board Review #16-17).
- PO Teran has been a member of the service for eleven years and has been a subject in one previous CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- On June 3, 2024, § 87(2)(b) filed a Notice of Claim with the NYC Office of the Comptroller alleging reckless endangerment and serious physical injury and seeking \$20,000,000 in damages (Board Review #18)
- On August 22, 2024, § 87(2)(b) also filed a Notice of Claim with the NYC Office of the Comptroller alleging reckless endangerment and serious physical injury and seeking \$20,000,000 in damages (Board Review #18).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 15

Investigator:	Owen Godshall	SI Owen Godshall	02/07/2025
	Signature	Print Title & Name	Date

Squad Leader:	Simon Wang	IM Simon Wang	02/07/25
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date